

102	2023-01333212 Sampson vs. Rocha	Motion - Other Plaintiff Michelle Sampson filed what appears to be a motion on 6/5/26. (ROA 245.) There is no notice of motion that was filed. (See CRC, Rules 3.1110, 3.1112(a).) In addition, there is no memorandum of points and authorities. California Rules of Court rule 3.1113(a) states, “A party filing a motion . . . must serve and file a supporting memorandum.” That rule further states, “The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial.” (Cal. Rule Ct., rule 3.1113(a).) It is not clear what Plaintiff is requesting; she notes only that a number of filed forms must be processed and references reimbursement. Altogether, Plaintiff’s “motion” is nonsensical. It is therefore denied. The Court notes that Defendant filed an untimely opposition on September 11, 2026. The Court did not review or consider the late opposition in ruling on Plaintiff’s motion. The clerk is ordered to provide notice to all parties.
103	2024-01405130 Torossian vs. FCA US, LLC.	Motion for Attorney Fees Continued to 10-19-26 at 2:00 p.m. in Department C27.
105	2025-01509775 Veliz vs. Feitosa	1. Demurrer to Cross-Complaint 2. Case Management Conference Cross-Defendants Antero Velez’s, individually, and as Trustee of the Antero Velez Living Trust’s unopposed demurrer to Cross-Complainant Benoate Feitosa’s Cross-Complaint is sustained with 15 days leave to amend. Cross-Complainant failed to file a timely opposition. It appears Cross-Complainant attempted to file a First Amended Cross-Complaint, thus impliedly conceding that the demurrer has merit. This, however, was rejected by the clerk’s office. In any event, failure to oppose the demurrer may be construed as having abandoned the original claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20.) Thus, the demurrer is sustained with leave to amend. Case management conference is continued to March 15, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
106	2023-01323759 Honarkar vs. Makhijani	1. Motion of Receiver 2. Motion to Expunge Lis Pendens <u>Motion of Receiver</u>

		Receiver Jeremy W. Faith’s unopposed motion for order (1) discharging the Receiver, (2) approving his final report and account, (3) barring future claims against the Receiver, the Receiver’s employees, and professionals, (4) exonerating the Receiver’s bond, and (5) retaining jurisdiction over all matters related to the receivership estate and exoneration of the bond is granted. [ROA #902.] The Receiver is to submit a proposed order and give notice of this ruling. <u>Motion to Expunge Lis Pendens</u> Intervenor Preferred Bank’s motion for order expunging the lis pendens (recorded in the office of the San Bernardino County Recorder as Instrument No. 2025-0199109 on August 21, 2025) recorded by plaintiffs Mohammad Honarkar and 4G Wireless, Inc. against real property formerly owned by Tesoro Redlands DE, LLC (“Tesoro LLC”), and commonly known as 106 West Pennsylvania Avenue, Redlands, California 92374 (Assessor’s Parcel No. 0167-151-24, the “Tesoro property”) is granted. Intervenor is awarded attorneys’ fees of \$21,137.40. [ROA ## 1039, 460.] Intervenor’s request for judicial notice is granted. [ROA #1035.] Intervenor is to submit a proposed order and provide notice of this ruling.
107	2025-01469424 Roggero vs. Serrano Water District	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <u>Demurrer</u> Defendants Serrano Water District and Jerry Vilander’s (“Defendants”) Demurrer to Plaintiff Vittorio Roggero (“Plaintiff”) Second Amended Complaint (“SAC”) is sustained in part and overruled in part. Defendants demur to the third cause of action for unlawful discrimination based on disability and to the fourth cause of action for unlawful harassment based on disability in the SAC. <u>3rd COA – Unlawful Discrimination (Disability)</u> Under the FEHA, it is unlawful to discriminate against an employee on the basis of a physical or mental disability. (See <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 925.) Under the burden-shifting framework of <i>McDonnell Douglas Corp.</i>, the plaintiff must “first establish a prima facie case of discrimination by showing that ‘he or she (1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations[;] and (3) was subjected to an adverse employment action because of the disability or perceived disability.’” (<i>Id.</i> at p. 926, citation omitted.) Defendants demur to this claim on the grounds that Plaintiff does not allege he “currently suffers from a disability” (i.e., that Plaintiff suffered from ADHD at the time of his employment or that Defendants knew of any); or that any adverse actions were taken against him due to Vilander’s discriminatory animus on the basis of Plaintiff’s disability. (ROA 107 [Demurrer at pp. 5-7].)